

23TRCV01881 23TRCV01881

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 23TRCV01881 Hearing Date: August 12, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Wednesday, August 12, 2026

Department M Calendar No.

PROCEEDINGS

Deandre Davon Fluckers, et al. v. Extended
Stay America, Inc., et al.

23TRCV01881

1. Lisa Y. Ross's, Guardian Ad Litem for Renzo Ross,
Petition for Approval of Compromise of Claim of Minor

TENTATIVE RULING

Lisa Y. Ross's, Guardian Ad Litem
for Renzo Ross, Petition for Approval of Compromise of Claim of Minor is granted.

Background

Plaintiffs' Complaint was filed on June 12, 2023. The
Second Amended Complaint was filed on March 13, 2024. Plaintiffs allege the
following facts. Pursuant to a rental agreement, Plaintiffs are tenants of a
property located at 18602 South Vermont Avenue, Room 321 Gardena, California

90248. The property suffers from numerous habitability problems including toxic mold and vermin that have caused injuries to Plaintiff. Plaintiff alleges the following causes of action: 1. Negligence; 2. Breach of Implied Warranty of Habitability; 3. Breach of Covenant of Quiet Enjoyment; 4. Nuisance; 5. Intentional Infliction of Emotional Distress; 6. Negligent Infliction of Emotional Distress; 7. Collection of Rent for Untenantable Dwelling; 8. Willful Interruption of Services; 9. Violation of Los Angeles County Code Section 8.52.130 et seq.

Petition to Approve Compromise of Pending Action of Minor

A claim by or against a minor may be settled through compromise only with the approval of the court.

A petition for approval must be presented to the court by the minor's guardian. CCP § 372; Probate Code Secs. 2500-2507; 3413-3605.

The court should consider the following factors: the circumstances of the accident, particularly the facts bearing on the payor's liability and the minor's damages; the amount of the proposed settlement; the method of payment; the nature of the injury and the minor's current medical status (the petition should include a recent medical report); and the amount of attorney's fees being requested. Before the hearing, the court should make a preliminary determination of whether the proposed settlement and the method of payment appear reasonable in relation to the potential liability and the nature and extent of injuries. It is especially important to determine whether the minor's condition is permanent, and whether it is stable or likely to worsen. The court should also make a preliminary determination as to whether the costs, expenses, and attorneys' fees appear reasonable.

The Court has reviewed the petition for compromise of pending action. The Court determines that the petition is reasonable as to the settlement amount. The Court finds that the settlement is in the best interest of the minor. The Court finds that the costs, expenses, and attorneys' fees are reasonable. The proposed petition for compromise of the pending action and the proposed disposition of the proceeds of the settlement funds are hereby approved.

Thus, for the foregoing
reasons, Petitioner's Petition to Approve Compromise of Pending Action of Minor
is granted.

Petitioner is ordered to
give notice of this ruling.